

SENATE No. 308

The Commonwealth of Massachusetts

PRESENTED BY:

Rebecca L. Rausch

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act protecting the Commonwealth's gaming industry.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	
<i>Paul R. Feeney</i>	<i>Bristol and Norfolk</i>	<i>6/13/2025</i>
<i>Marcus S. Vaughn</i>	<i>9th Norfolk</i>	<i>9/11/2025</i>

SENATE No. 308

By Ms. Rausch, a petition (accompanied by bill, Senate, No. 308) of Rebecca L. Rausch for legislation to protect the Commonwealth's gaming industry. Economic Development and Emerging Technologies.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 238 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act protecting the Commonwealth's gaming industry.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding the provision of any General or Special Law to the
2 contrary, Chapter 23K of the General Laws as appearing in the 2022 Official Edition is hereby
3 amended as follows:

4 In section 2 by striking the definition of "Category 2 license" and replacing with the
5 following new definition:

6 "Category 2 license" a license issued by the Commission that permits the licensee to
7 operate a gaming establishment with no table games and not more than 1,250 slot machines,
8 except as may otherwise be determined by the Commission subject to the provisions of this
9 Chapter.

In section 11 by adding the following new subsection:

(d) 1. The Commission may and shall be empowered to consider the benefit to the Commonwealth, community and surrounding communities of allowing the Category 2 licensee to host up to 30 table games and an additional 250 slot machines. Prior to the entertainment of any such consideration the Commission shall require that:

i. The licensee has requested such consideration.

ii. The Mayor and City Council or Board of Selectmen and Town Meeting of the category 2 licensee host community have approved and certified approval of such consideration.

(d) 2. Upon such requests for consideration, the Commission may authorize, in its absolute and sole discretion, the category 2 licensee to host from 1-30 table games and/or an additional 1-250 slot machines if, after 2 public hearings, one of which shall take place in the category 2 host community the Commission has found and determined that:

i. the licensee request meets the applicable requirements of Section 9 of this Chapter and

ii. that the Commission's authorization is in the Commonwealth's best interests.

SECTION 2. Any authorization made by the Commission as a result of the provisions of this Chapter shall in no way constitute licensure and shall terminate if the Category 2 licensee is not renewed subject to the provisions of section 20 (f) of said Chapter 23K, is terminated, surrendered or suspended.